

CASE INFORMATION

Date: 03.06.2025

29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

The information below comes from the documents submitted by the parties. Such information is intended to give the arbitral tribunal an overview of this arbitration and is not intended to affect any assessment or decision of the arbitral tribunal.

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Parties

Claimant

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Respondent 1

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Respondent 2

INVICTUS CABLE GMBH

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

[iccwbo.org/arbitration](https://www.iccwbo.org/arbitration)

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Respondents counsel

Not yet represented by outside counsel

Other relevant entities

Elcomponics Sales Private Limited (India)
 Muhri & Werschitz

Agreements upon which the Request is based

- Shareholders Agreement (SHA) dated 24 March 2023, signed by The parties

Arbitration Agreement

- Article 10 of the Agreement:

10.1. Governing Law

This Agreement and the rights and obligations arising out of or in connection with this Agreement shall be governed by and construed in accordance with English Law, subject to mandatory provisions of Austrian and Indian laws.

10.2. Dispute Resolution

*Both Parties shall, in good faith, attempt to settle amicably any dispute, controversy, difference or Claim including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or in connection with or relating to this Agreement ("**Dispute**"). If the Dispute is not resolved amicably, the Dispute shall be referred to and finally resolved by binding arbitration in accordance with the ICC Rules of the International Chamber of Commerce. The seat of arbitration shall be Paris and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*

Applicable Law

- Article 10.1 of the Agreement	<i>“English Law, subject to mandatory provisions of Austrian and Indian laws”</i>
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Language of Arbitration

- Article 10.1 of the Agreement	English
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Place of Arbitration

- Article 10.2 of the Agreement	Paris (France)
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Number of Arbitrators

- Article 10.2 of the Agreement	1
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Amount in Dispute

See the attached Financial Table.